

SENATE BILL 335

By Yarbro

AN ACT to amend Tennessee Code Annotated, Title 28;
Title 29; Title 36, Chapter 3, Part 6; Title 39 and
Title 40, Chapter 2, relative to invasion of privacy.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-605(a)(1)(B), is amended by deleting the subdivision and substituting:

(B)

(i) Was taken for the purpose of sexual arousal or gratification of the defendant; or

(ii) Includes the unclothed intimate area of the individual or the individual engaged in sexual activity, as defined in § 39-17-1002, and the person knew that the photograph would include such content; or

SECTION 2. Tennessee Code Annotated, Section 39-13-605(d)(2), is amended by adding the following new subdivisions:

(C) The photograph was taken using a camera or other recording device that was hidden from plain view at the time of the offense; or

(D) There was more than one (1) victim of the offense.

SECTION 3. Tennessee Code Annotated, Section 39-13-605, is amended by adding the following new subsection:

(g) Prosecution for a violation of this section must commence as provided in title 40, chapter 2. Pursuant to § 40-2-103, the statute of limitations is tolled for any period during which the defendant conceals the crime until such time at which the victim discovers the crime.

SECTION 4. Tennessee Code Annotated, Section 36-3-601(8), is amended by deleting the language "or a human trafficking offense" and substituting ", a human trafficking offense, or unlawful photography".

SECTION 5. Tennessee Code Annotated, Section 36-3-601, is amended by adding the following new subdivision:

() "Unlawful photography victim" means a person who has been the victim of the offense of unlawful photography, as defined in § 39-13-605;

SECTION 6. Tennessee Code Annotated, Section 36-3-602, is amended by deleting subsection (a) and substituting:

(a) Any domestic abuse victim, stalking victim, sexual assault victim, or unlawful photography victim who has been subjected to, threatened with, or placed in fear of, domestic abuse, stalking, sexual exploitation of a minor, sexual assault, a human trafficking offense, or unlawful photography, may seek relief under this part by filing a sworn petition alleging domestic abuse, stalking, sexual exploitation of a minor, sexual assault, a human trafficking offense, or unlawful photography by the respondent.

SECTION 7. Tennessee Code Annotated, Section 36-3-602(c), is amended by deleting the language "or human trafficking offense" and substituting "human trafficking offense, or unlawful photography".

SECTION 8. Tennessee Code Annotated, Section 36-3-605(b), is amended by deleting the language "or a human trafficking offense" wherever it appears and substituting "a human trafficking offense, or unlawful photography".

SECTION 9. Tennessee Code Annotated, Section 36-3-606(a), is amended by deleting the language "or a human trafficking offense" wherever it appears and substituting "a human trafficking offense, or unlawful photography".

SECTION 10. Tennessee Code Annotated, Section 36-3-613(a), is amended by deleting the language "or a human trafficking offense" and substituting "a human trafficking offense, or unlawful photography".

SECTION 11. Tennessee Code Annotated, Section 36-3-617(a), is amended by deleting the language "sexual assault victim," wherever it appears and substituting "sexual assault victim, unlawful photography victim,".

SECTION 12. Tennessee Code Annotated, Section 36-3-617(a)(2)(B), is amended by deleting the language "sexual assault," and substituting "sexual assault, unlawful photography,".

SECTION 13. This act is known and may be cited as the "Voyeurism Victims Act."

SECTION 14. This act takes effect July 1, 2025, the public welfare requiring it.